

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

SUMMONS

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ROSEMARK PALEN,

Index #

Plaintiffs,

-against-

The basis of venue is:
Place of Incident

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER DAMIEN DRISCO (Shield # 28308),
and POLICE OFFICERS JOHN DOES #2-8 (names and
numbers of who is unknown at present), and other
unidentified members of the New York City Police
Department,

Plaintiff designates New York
County as the place of trial.

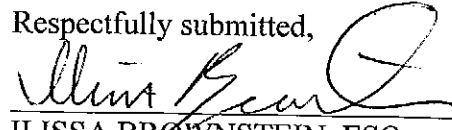
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 10, 2014

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
22 Cortlandt Street, 16th Floor
New York, New York 10007
(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER DAMIEN DRISCO (Shield # 28308)
6th Precinct, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

VERIFIED COMPLAINT

-----X
ROSEMARK PALEN,

Index #

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER DAMIEN DRISCO (Shield # 28308),
and POLICE OFFICERS JOHN DOES #2-8 (names and
numbers of who is unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
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Plaintiff **Rosemark Palen**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Rosemark Palen is a citizen of the United States and a resident of Union City, New Jersey.
3. Police Officer Damien Drisco (Shield # 28308), is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Damien Drisco (Shield # 28308) is being sued in his individual capacity and official capacity.

5. New York City Police Officers John Does #2-8 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
6. New York City Police Officers John Does #2-8 are being sued in their individual capacities and official capacities.
7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
9. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
10. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
11. The City of New York held a 50(H) hearing examination of the Plaintiff on November 13, 2013.

STATEMENT OF FACTS

12. Rosemark Palen was 23 years old at the time of his arrest.
13. On November 10, 2012 at 12:30am at 162 Bleecker Street at lounge called Falucka, Mr. Palen was arrested by members of the NYPD.
14. Mr. Palen was in the lounge with his girlfriend Ashley Powell and two brothers, Michael Palen and Anthony Vargas.
15. Mr. Palen's girlfriend Ashley Powell gave Mr. Palen a credit card to order a bottle of champagne.

16. The credit card was declined. The bartender returned the card to Mr. Palen, who gave it back to Ms. Powell.
17. Mr. Palen, Ms. Powell and both of his brothers were all arrested for possession of one credit card.
18. The officers applied the handcuffs too tight, causing pain to both wrists.
19. Mr. Palen was incarcerated for approximately 36 hours before being released ROR.
20. Mr. Palen attended five court appearances.
21. Mr. Palen was denied employment as the result of this pending case.
22. On July 18, 2013, the case was dismissed on motion of the prosecutor.
23. Plaintiff filed a notice of claim on September 9, 2013.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

24. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive force based as well as an unlawful and sexually abusive search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST & FALSE IMPRISONMENT

26. Plaintiff repeats and realleges paragraphs 1 through 25 as if fully set forth herein.
27. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact,

confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

28. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of the officer defendants, is responsible for their wrong doing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Malicious Prosecution

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
32. Defendants commenced and continued a criminal proceeding against plaintiff.
33. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
34. The prosecution and criminal proceedings terminated favorably to plaintiff on July 17, 2013.
35. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
36. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

ASSAULT

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

38. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously handcuffed plaintiff so tightly in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.
39. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

BATTERY

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
42. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner handcuffed plaintiff so tightly with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.
43. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
44. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
46. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SEVENTH CAUSE OF ACTION

FAILURE TO INTERVENE

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
49. Defendants failed to intervene to prevent the unlawful conduct described herein.
50. As a result of the foregoing, plaintiff was physically assaulted and subjected to an illegal and sexually abusive search.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and NYPD, which are therefore responsible for their conduct.
52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENCE

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
54. Defendants owed a duty of care to plaintiff.
55. Defendants breached that duty of care by handcuffing plaintiff so tightly despite demands by Plaintiff to loosen the handcuffs.
56. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
57. All of the foregoing occurred without any fault by plaintiff.
58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.
61. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
62. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.
64. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
65. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to policies, customs and practices wherein New York City Police Officers arrest individuals without probable cause and create false versions of events to justify their actions.
66. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual

defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

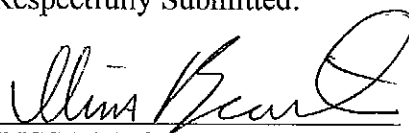
67. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.
68. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.
69. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.
70. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

WHEREFORE, ROSEMARK PALEN, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
October 10, 2014

Respectfully Submitted:

By:


ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
22 Cortlandt Street (16th Floor)
New York, New York 10007
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

POLICE OFFICER DAMIEN DRISCO (Shield # 28308)
6th Precinct, New York, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 10, 2014


ILISSA BROWNSTEIN, ESQ.